

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-21

PKDC, LLC,
Complainant,

v.

CMA CGM S.A.,
Respondent.

**COMPLAINANT’S MOTION FOR CONFIDENTIAL TREATMENT OF
DESIGNATED INFORMATION CONTAINED IN
COMPLAINANT’S OPENING BRIEF AND APPENDIX**

Pursuant to Rule 5 of the Federal Maritime Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.5, paragraph 4(c) of the Protective Order entered by the Presiding Officer in this matter on February 7, 2025, Doc. No. 20, and the May 28, 2026 Order entered by the Presiding Officer in this matter, Doc. No. 58, Complainant PKDC, LLC, moves for confidential treatment of information designated in Complainant’s opening brief (including proposed findings of fact) and appendix (the “subject filings”).

Good cause exists for treating the information designated in the subject filings as confidential as it constitutes “a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii).” 46 C.F.R. § 502.5(b). Specifically, the information designated in the subject filings consists of the identity of Respondent CMA CGM S.A.’s other customers. Such information has been found to be protectable trade secrets. *See, e.g., Allstate Ins. Co. v. Ameriprise Fin. Servs., Inc.*, 2023 WL 5334638, at *14 (N.D. Ill. Aug. 18, 2023)

(“Customer lists, meaning a business’s collection of customer identities, are protectable trade secrets.”). Furthermore, 46 C.F.R. § 530.4 provides that service contracts are confidential, and 46 U.S.C. § 40502(d) provides that the identity of the shipper is not part of the public essential terms of a service contract. Complainant therefore respectfully requests that the Presiding Officer grant confidential treatment for the following information, for the following reasons:

<i>Document</i>	<i>Description</i>	<i>Classification Requested for</i>	<i>Basis for Confidentiality Request</i>
Opening Brief, p. 14, ¶ 35(a) and (b)	Findings of Fact	Material indicated	Customer identities
Opening Brief, p. 33	Opening Brief	Material indicated	Customer identities
APP0378	December 2, 2020 email titled “Post COVID Client Expectations”	Material indicated	Customer identities
APP0410-APP0418	October 17, 2023 email titled “China equipment priority list”	Material indicated	Customer identities
APP0498-APP0507	May 21, 2021 email titled “JAX 0TUHNE1MA CMA CGM ANDROMEDA”	Material indicated	Customer identities
APP0513	June 12, 2020 email titled “PSS Tracker Template”	Material indicated	Customer identities
APP0523-APP0525	December 17, 2021 email titled “QRWK50 TP cap setting – NGB // VIP pool application/ HBB EVER LEADER + OOCL TAIPEI”	Material indicated	Customer identities
APP0661-APP0687	December 12, 2023 email titled “China equipment priority list”	Material indicated	Customer identities
APP1168-APP1177	May 1, 2022 email regarding a particular	Material indicated	Customer identity

	customer's request for proposal		
CMA146967	March 31, 2022 spreadsheet recounting MQC performance by customer	Entire document	Customer identities
CMA146990	Spreadsheet indicating which customers are VIPs	Entire document	Customer identities
CMA143283	Spreadsheet indicating which customers purchased SPGO	Entire document	Customer identities

Respectfully submitted,

/s/ Luke Mathers

Luke Mathers

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Dated: June 10, 2026

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CERTIFICATE OF SERVICE

I certify that on June 10, 2026, the foregoing submission was served by electronic mail on all counsel of record, in accordance with 46 C.F.R. Part 502 and the Commission's Order of May 12, 2020, as follows:

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